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United States Senate

COMMITTEE ON FOREIGN RELATIONS

December 14, 1949

Honorable John Foster Dulles
48 wall Street
New York, New York

My dear Foster:

Thanks for sending me your Tuesday speech. I think it is excellent - as usual.

I am hoping to leave quietly for Washington with Hazel the middle of next week. I shall be delighted to see you as soon as you wish to come down after my arrival. I will wire you when I leave here.

There is one technical question I wish you would think about. I want your viewpoint on whether the World Court can be asked for an "Advisory opinion." Very confidentially (please mention it to no one) I am thinking about a possible recourse to the World Court (perhaps as a last resort) to establish the status of Formosa as a continuing part of Japan until the final peace treaties are written. This may be entirely fantastic, but it is at least intriguing. What I want to know is whether the Security Council can vote a request for an "advisory opinion" as a procedural matter without the intervention of veto rights. There is no great hurry about the matter. But I would like to have your slant on it within a week.

If I do not see you sooner, please let me wish you and Janet a Merry Christmas and a Happy New Year. And please let me re-express my jealous envy of your current private citizenship.

With warm personal regards and best wishes,

Cordially and faithfully,

Arthur Vandenberg